

As for sanctions under Code of Civil Procedure section 128.5, the court should deny Plaintiffs' request. Section 128.5 allows a court to order a party or counsel, or both to pay the reasonable expenses, including attorney's fees, incurred by the other party as a result of bad-faith actions or tactics that are frivolous or solely intended to cause unnecessary delay. Section 128.5(a) requires either: (1) bad faith actions or tactics or (2) a frivolous action. Actions or tactics includes "the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer or other responsive pleading." (*Id.* at § 128.5(b)(1).) Frivolous is "totally and completely without merit or for the sole purpose of harassing an opposing party." (*Id.* at § 128.5(b)(2).) The standard is based on a subjective bad faith determination rather than objective. (*In re Marriage of Sahafzadeh-Taeb & Taeb* (2019) 39 Cal.App.5th 124, 134.)

Despite the denial of the motion, the court shall not impose sanctions as Defendant's motion has merit regarding the ability of Plaintiff in obtaining a default judgment. Under the current situation, Plaintiffs will not receive a default judgment. The complaint lacks any notice about the amount of damages, and therefore, any default judgment would violate due process. (*Marriage of Lippel* (1990) 51 Cal.3d 1160, 1166.) Nor would a statement of damages cure any defect, because it applies to personal injury and wrongful death actions, and must be served before entry of default. (Code Civ. Pro. §425.11.) This is not a personal injury or wrongful death action, and thus a statement of damages does not cure a defect. (*Dhawan v. Biring* (2015) 24 Cal.App.4th 963, 968.)

Motion to Quash Service of Summons DENIED.

Request for Sanctions DENIED.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2406454	GUBIN VS MAJER	MOTION TO SET ASIDE DEFAULT ON COMPLAINT OF SYDNEY GUBIN BY DENNIS N. WALSH

Tentative Ruling: No tentative ruling, a hearing shall be conducted.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2506601	TAPIA MORALES VS KIRKPATRICK	MOTION FOR AMENDING THE FILING DATE OF COMPLAINT NUNC PRO TUNC BY REYNA AIDEE TAPIA MORALES, YOVANI AGUILAR TAPIA

Tentative Ruling: Code of Civil Procedure section 473(d) permits the court, upon motion, to correct clerical mistakes in its judgments or orders. A clerical error is an inadvertent error in entering or recording the judgment rather than in rendering the judgment, i.e. judicial error. (*Bell v. Farmers Ins. Exch.* (2006) 135 Cal.App.4th 1138, 1144.) While section 473(d) speaks in terms of judgments and orders, California courts have consistently applied nunc pro tunc principles to deem complaints filed when clerks improperly reject them. (*Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774, 778; *Carlson v. State of California Department of Fish & Game* (1998) 68 Cal.App.4th 1268, 1282-1283.) The remedy is not limited to post-judgment corrections.